

Joint Submission to the Universal Periodic Review of the  
Democratic People's Republic of Korea  
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**Coalition against Gender-Based Violence (GBV) towards  
Women and Girls in the DPRK**



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## About Contributing Organisations

**Korea Future (KF)** is a non-profit, non-governmental organisation documenting human rights violations and international crimes committed in the penal system of the Democratic People's Republic of Korea (DPRK). KF undertakes credible documentation and analysis of human rights violations and international crimes and uses this information to support accountability proceedings under national and international law. KF was established in 2017 and we operate from offices in The Hague, Seoul, and London with a dedicated team of investigators, legal analysts, and expert consultants.

**Eum Research Institute (EUM)** is an academic research organisation dedicated to contributing to the forthcoming reunification of North Korea. The institute conducts people-centred research, fostering a nuanced understanding of "North Koreans" and "North Korean society." Established in 2020, EUM actively engages in research and educational initiatives focusing on North Korean people, particularly North Korean women. Additionally, EUM collaborates with government ministries such as the Ministry of Unification, domestic and international North Korean human rights foundations, and academic institutions.

**UNISEED** is a North Korean woman-led community organisation that has been leading volunteer programs to cultivate human rights and peace sensitivity among North and South Koreans through activities that support marginalised communities in South Korea. Active since 2014, it seeks to broaden its activities to include human rights work including documentation of human rights violations against North Korean women.

## Methodology

1. This submission is jointly filed by KF, EUM, and UNISEED. It draws upon a multidisciplinary approach that encompasses a review of civil society reports, media coverage, scholarly articles, and key findings from KF's primary data collected through a series of engagements:
  - 1.1. **Interviews Conducted by KF:** This component details first-hand accounts of human rights abuses within the DPRK penal system, based on interviews with survivors post the 2019 Universal Periodic Review (UPR) cycle. This information provides contemporary evidence of systemic violations.
  - 1.2. **Online Attitudinal Survey (2022-2023):** A survey engaging 150 North Korean respondents (comprising equal numbers of women and men), assessing perceptions regarding gender-based violence (GBV), particularly sexual violence within the DPRK.
  - 1.3. **In-depth Consultations:** These consultations were conducted with 15 escapees who left the DPRK after 2015, 8 of whom escaped post-2019, and offered qualitative insights into the prevalence and nature of sexual violence.
2. EUM and UNISEED verified the data and provided additional contextual analysis and feedback on the recommendations.
3. Border closures following the outbreak of the COVID-19 pandemic led to a significant decrease in the number of North Koreans escaping from the DPRK. Limited recent, first-hand accounts from escapees impacts the availability of contemporary insights essential for assessing the evolving human rights landscape in the DPRK.

## Follow up to Previous Review

4. In the previous UPR cycle, the DPRK supported 130 recommendations while noting 133. Among the supported recommendations, 31 pertained to the DPRK's failure to prevent and penalise GBV against women and girls. These recommendations spanned a broad array of human rights concerns, including trafficking, disability rights, the rights of the child, women's rights, issues related to sexual orientation and gender identity, discrimination, conditions of detention, and the prohibition of torture and other forms of inhuman treatment.
5. Out of the 31 recommendations that the DPRK supported, 18 were explicitly focused on various aspects of GBV or the insufficiency of support structures for victims of such violence. These recommendations urged the DPRK to enhance its efforts to prevent violence against women and children, safeguard and promote the rights of women and children through the provision of critical services, implement policies to deter the trafficking of women and children and criminalise violence against women and girls, and to accede to international treaties dedicated to protecting women and children from trafficking and violence.
6. Moreover, of the 133 noted recommendations, KF identified 13 that are pertinent to forms or victims of GBV.<sup>1</sup> Within this subset, 8 recommendations explicitly call for the DPRK to

recognise, criminalise, and formulate policies to address GBV, trafficking, and sexual violence, including coerced abortions.<sup>2</sup> These recommendations reflect a critical demand for legislative and policy reforms within the DPRK to address GBV.

### **Advancing women's rights**

7. In the 2019 UPR cycle, the DPRK committed to the enhancement and safeguarding of women's rights.<sup>3</sup> As part of its commitment, in June 2021, the DPRK presented its Voluntary National Review (VNR) on sustainable development goals, explicitly affirming gender equality and the protection of women's and girls' rights as priority areas. The DPRK articulated its strategy to bolster women's empowerment through improvements in education and other sectors to fully realise women's potential.<sup>4</sup> Furthermore, it committed to the implementation of national legislation aimed at ensuring gender equality. As a tangible, minor measure towards this commitment, the DPRK outlined its plan to increase the representation of women in governmental and cadre positions, thereby reinforcing its efforts to advance gender equality within its jurisdiction.
8. The DPRK has ostensibly demonstrated a willingness to showcase women in leadership roles through the outputs managed by the Propaganda and Agitation Department. For example, since September 2021, Kim Yo Jong has served as a member of the State Affairs Commission in her capacity as Deputy Department Director of the Publicity and Information Department of the Workers' Party of Korea, marking her as the sole female member on the panel.<sup>5</sup> Furthermore, Choe Son-hui's appointment as the Minister of Foreign Affairs on 11 June 2022 represents a first for female leadership in that role.<sup>6</sup>
9. Ground-level findings suggest these high-profile appointments are not definitive markers of gender equality within the DPRK. The enduring influence of the *songbun* system, which stratifies society and privileges a narrow segment of elites, continues to undermine genuine gender equality across the population.

### **Reproductive rights**

10. During the previous UPR cycle, the DPRK supported recommendations aimed at bolstering the provision and accessibility of essential services, with a particular focus on enhancing the well-being of women, children, the elderly, and persons with disabilities. In its 2021 VNR report, the DPRK underscored progress within its Reproductive Health Service, presenting unverified data on contraceptive prevalence rates which stood at 78.2% in 2014, declining slightly to 70.3% in 2017.<sup>7</sup> Furthermore, the report detailed a reduction in the unmet need for family planning, from 7.0% in 2014 to 6.6% in 2017.<sup>8</sup> These figures have not been independently verified.
11. Additionally, the DPRK embarked on the implementation of a five-year National Reproductive Health Strategy starting from 2017. This strategy, developed in collaboration with the United Nations Population Fund (UNFPA), referred to goals set forth in the "Cairo Action Plan on Population and Development," along with resolutions adopted at the Beijing Forum.<sup>9</sup> These

efforts are indicative of the DPRK's willingness to publicly align with international recommendations and commitments aimed at improving reproductive health services, even where there appears to be no discernible resulting improvement for public health and well-being for the wider population.

### **Rights of persons with disabilities**

12. In addressing the rights of women and girls with disabilities, the DPRK has allegedly formulated and implemented "The Strategy for the Protection and Promotion of Persons with Disabilities" for the period of 2019-2020. This strategy is said to encompass specific measures to facilitate the employment of working-age women with disabilities, ensuring that job opportunities and labour conditions are tailored to align with their capabilities and health requirements.<sup>10</sup>
13. Following the 2019 United Nations Economic and Social Commission for Asia and the Pacific (UNESCAP) forum, the DPRK expressed commitment to sustainable development through active participation in the High-Level Political Forum (HLPF).<sup>11</sup> Despite this, the DPRK avoided addressing inquiries regarding children's rights, women's rights, forced labour, discrimination, and human rights violations during the COVID-19 pandemic.<sup>12</sup> This omission indicates a selective approach to addressing international concerns, highlighting human rights issues the DPRK remains unresponsive to.
14. In 2019, the DPRK submitted its initial report to the Committee on the Rights of Persons with Disabilities (CRPD). In response to the list of issues the CRPD formulated, during its 131st session in March 2021, the DPRK furnished answers to the CRPD's queries on December 13, 2023. The DPRK asserted that women, including those with disabilities, enjoy rights equal to those of men, without any legal or institutional discrimination hindering their universal rights.<sup>13</sup>

### **GBV including sexual violence**

15. In the third UPR cycle in 2019, the DPRK reiterated its dedication to the progression and protection of women's rights. The scrutiny of the The Law on the Protection and Promotion of the Rights of Women (2015) (hereinafter 'Women's Rights Law') was a focal point during this review period. Despite receiving recommendations to incorporate a clear definition of violence against women, including rape and trafficking,<sup>14</sup> and to enhance the enforcement of this legislation, subsequent actions have not been taken to amend the law.<sup>15</sup>
16. In its 2021 VNR, the DPRK diminished the significance of mental and physical violence against women and girls by categorising it as a non-social issue. This perspective underscores a reluctance to recognise the prevalent issues of GBV, in particular sexual violence, within penal settings and to implement necessary improvements. This position was echoed in the DPRK's 2023 response to the CRPD, where the DPRK claimed that "violence, abuse, and exploitation against women and girls" were not issues "conceivable" within the DPRK.
17. Despite state media campaigns promoting family harmony and condemning domestic abuse, alongside narratives of efforts to safeguard the rights of women and children by eliminating

harmful traditional practices, legislative actions fall short.<sup>16</sup> While Article 46 of Women's Rights Law denounces domestic violence and mandates regional institutions and organisations to prevent it, neither the Criminal Code (2022) nor the Criminal Procedure Law (2021) criminalise domestic violence. Additionally, there remains a notable absence of legal provisions ensuring the rehabilitation and support of victims, indicating a significant gap in the legal framework and protection mechanisms for addressing and mitigating GBV including sexual violence and domestic violence in the DPRK.

### **Discrimination and violence against people with diverse SOGIESC**

18. The DPRK has not tackled discrimination and violence against individuals with diverse Sexual Orientation, Gender Identity, Expression, and Sex Characteristics (SOGIESC), due to its non-recognition of the existence of such diversity within its population. During the third UPR cycle, the DPRK failed to address two recommendations aimed at combating discrimination grounded in gender, sexual orientation, and gender identity.<sup>17</sup> This omission signals a continued lack of commitment to acknowledging and protecting the rights of individuals with diverse SOGIESC, highlighting a significant area of concern in the DPRK's approach to human rights.

## **National Human Rights Framework**

### ***Legislation***

19. The DPRK's legal framework on gender equality and therefore GBV, is based on a patriarchal, heteronormative, and binary gender model. The 1946 Law on Sex Equality, the DPRK's inaugural legislation in this area, affirms women's rights to economic, social, cultural, and political equality with men.<sup>18</sup> The Family Law (2009), while stipulating that wives and husbands have equal rights within the family in Article 8, exclude specific penalties and protections regarding domestic violence. The Women's Rights Law (2015), the only legislation dedicated to women's rights, mandates in Article 1 the elevation of women's status and roles.<sup>19</sup> Further, the 2019 amendments to the Socialist Constitution ostensibly ensures women's "equal social status and rights with men" in Article 77, mandating state-provided special protections (e.g., maternity leave) to facilitate women's societal participation.<sup>20</sup> Additionally, the Socialist Labour Law (2015) asserts the state's responsibility to create conditions that cater to women's specific needs.<sup>21</sup>

### **Sexual Education**

20. The DPRK's legislative framework, including the Education Law (2015), People's Public Health Law (2012), Childcare and Education Law (2013), and the Women's Rights Law, lacks provisions on sexual education. Article 20 of the Women's Rights Law vaguely mandates that educational institutions should provide education aligned with the "physical nature of female students" and ensure facilities that safeguard and enhance female students' health.<sup>22</sup> However, the legislation fails to establish which content is suitable for the "physical nature of female students," and excludes any considerations about ethics and the diverse biological and social impact on the understanding of sex and gender, leaving a gap in comprehensive sexual education guidelines.

### Domestic Violence

21. Legal measures addressing domestic violence are outlined in Article 46 of the Women's Rights Law which prohibits any form of assault against women within the family, requiring Regional People's Committees and other entities to conduct regular educational initiatives to prevent domestic assault and to ensure its absence within their areas of jurisdiction and among affiliated families.<sup>23</sup> However, it is critical to note that this piece of legislation does not formally criminalise domestic violence, indicating a significant gap in legal protection against such acts.

### Sexual Violence

22. The amended 2022 Criminal Code of the DPRK criminalises sexual violence under Articles 319 (Rape),<sup>24</sup> 320 (Coercion of Sexual Intercourse with a Woman in a Subordinate Relationship),<sup>25</sup> and 321 (Sexual Intercourse with a Female Minor Under 15 Years of Age).<sup>26</sup> However, the definition of sexual violence in these provisions is heteronormative and limited to acts of heterosexual sexual intercourse, without specifying the constituent acts thereof. Consequently, coercive and non-consensual sexual acts that do not involve physical contact and sexual violence against individuals who are physically female but identify as other genders, intersex, or men are not encompassed within these legal definitions.
23. The 2022 amendments to the DPRK Criminal Code adjust the legal penalties and definitions concerning sexual violence. Specifically, the amendment modifies the sentencing for rape from a previous maximum of 10 years to now a maximum of 9 years,<sup>27</sup> and from a minimum of less than 5 years to less than 4 years. Additionally, the definition of sexual violence involving minors has been narrowed from the 2015 Criminal Code's broad categorisation to specifically targeting acts involving female minors.<sup>28</sup>
24. The Women's Rights Law, Article 39, mandates comprehensive measures against the kidnapping, buying, selling, raping, or gang raping of women, insisting on stringent legal actions against perpetrators.<sup>29</sup> Article 55 further specifies that both individuals and officials within institutions, enterprises, and organisations bear administrative or criminal liability for violations.<sup>30</sup>
25. In its approach to victim reporting, the DPRK asserts that it safeguards the anonymity of sexual violence victims and offers reparations for harm as stipulated by the Law on Compensation for Damages (2005).<sup>31</sup> Additionally, Article 43 of the Law on Complaints and Petitions (2010) outlines that individuals or officials within institutions, enterprises, and organisations found to have breached this law, infringed upon citizens' rights and interests, or hindered state administrative functions, are subject to administrative or criminal liability, contingent upon the severity of their actions.<sup>32</sup>
26. In detention settings, the DPRK asserts that all legal processes are conducted in strict accordance with the law.<sup>33</sup> According to Articles 34<sup>34</sup> and 171<sup>35</sup> of the Criminal Procedures Law, investigations and preliminary examinations must be recorded either via audio or video. Detainee interrogations require the presence of a clerk and, when deemed necessary, two observers to mitigate the risk of power abuse or human rights violations by investigators. The Criminal

Procedures Law mandates prosecutorial oversight over detention and reform facilities to safeguard against human rights abuses.<sup>36</sup>

27. Article 220 specifies that searches must occur in the presence of two observers, with female officers designated for searches involving women.<sup>37</sup> Should a female officer be unavailable, a woman is briefed and appointed to perform the search. Article 167 explicitly bans preliminary examiners from inducing confessions or statements through coercion.<sup>38</sup> Furthermore, Article 242 of the Criminal Law penalises any law enforcement official engaging in illegal interrogation techniques or case manipulation with criminal charges, reinforcing the legal framework aimed at preventing human rights violations within the DPRK's judicial processes.<sup>39</sup>

### **Human Trafficking**

28. Human trafficking is criminalised within DPRK's legislative framework, under the Criminal Code (2022),<sup>40</sup> the Women's Rights Law,<sup>41</sup> and the Children's Rights Protection Law (2014).<sup>42</sup> Article 39 of the Women's Rights Law prohibits the kidnapping, trafficking, rape, or gang rape of women. Notably, Article 40 ambiguously penalises individuals coerced into prostitution, treating them as offenders alongside those who facilitate or coerce prostitution.<sup>43</sup> This provision raises concerns regarding the victimisation of coerced individuals under the guise of committing prostitution.

### **Reproductive Rights**

29. The legislative framework addressing reproductive rights includes the Women's Rights Law, the Family Law, the People's Public Health Law (2012), and the Children's Rights Protection Law (2014). Specifically, Article 50 of the Women's Rights Law affirms that women possess the autonomy to decide on childbirth, explicitly stating, "women have the right to give birth or not give birth to children."<sup>44</sup> This provision underscores the recognition of women's reproductive rights within DPRK's legal system.
30. The DPRK's legal stance on abortion remains ambiguous, particularly in the context of the Women's Rights Law, which, while affirming women's rights to childbirth decisions, concurrently encourages the proliferation of childbirth.<sup>45</sup> This dual stance, particularly the emphasis on promoting childbirth, indirectly suggests a legal framework that could restrict abortion rights. The People's Public Health Law (2012) similarly advocates for increased childbirth, reinforcing this pro-natalist perspective.<sup>46</sup>
31. The Medical Law (2000) explicitly restricts abortion to cases deemed medically necessary to prevent severe congenital disabilities or genetic diseases, suggesting a restrictive approach to abortion access. Article 51 outlines the state's responsibility to ensure the provision of safe and effective medical care for childbirth, emphasising the health and welfare of both mother and child. This legal architecture indicates a complex intersection of reproductive rights, where the emphasis on childbirth potentially limits women's autonomy over reproductive decisions, including abortion.



32. Article 21 of the Children’s Rights Protection Law (2014) mandates the legal protection of children who, accompanied by parents or guardians or individually, have entered the territory of the DPRK.<sup>47</sup> Furthermore, Article 178 of the Criminal Procedures Law (2012) stipulates that pregnant women undergoing preliminary examination are exempt from detention or confinement during a period extending three months prior to, and seven months following, childbirth, outlining specific legal protections for pregnant women within the criminal justice process.<sup>48</sup>

### **Discrimination and violence against people with diverse SOGIESC**

33. The DPRK lacks legislation on prevention of discrimination and violence against individuals with diverse SOGIESC. However, the Family Law and the Criminal Code stipulate articles that could incriminate individuals with diverse SOGIESC. While not explicitly addressing people with diverse SOGIESC, Article 8, 13, and 16 of the Family Law establish that marriage is only permitted between a man and a woman. Article 54 stipulates that any individual who has violated this law is liable for administrative or criminal responsibility. On similar grounds, Article 288 and 292 of the Criminal Code criminalises ‘obscene acts’ without specifying the acts and ‘false marriages.’

### ***State organisations***

34. Established in 1945, the Socialist Women’s Union is a mass party organisation that women join upon marriage. It functions across all administrative levels, disseminating state policies through lectures and coordinating women’s participation in state-mandated labour. The Women’s Rights Law mandates that the Central Committee of the Korean Democratic Women’s Union, along with its subsidiary bodies at various levels, are tasked with educating the populace on women’s rights and overseeing the enforcement of state policies and legislation pertaining to gender equality.<sup>49</sup>
35. Article 4 of the Women’s Rights Law requires the state to develop and implement a foundational women’s rights protection plan.<sup>50</sup> Concurrently, Regional People’s Committees are obligated to formulate and execute annual plans aligned with the state’s foundational strategy. Article 52 clarifies that the Cabinet provides overarching guidance on women’s rights protection, with specific central bodies and Regional People’s Committees responsible for the administration and supervision of these efforts.
36. Furthermore, Article 5 of the Law on Complaints and Procedures designates workers within the complaints and petitions sector as the primary agents for handling grievances, emphasising the state’s role in ensuring these workers are well-organised, responsible, and effective in their duties.<sup>51</sup>
37. Established in April 2015, the National Committee for Implementing International Human Rights Treaties consolidated the existing national coordinating committees responsible for the Convention on the Rights of the Child (CRC) and the Convention on the Elimination of All Forms of Discrimination against Women (CEDAW). This Committee, ostensibly composed of representatives from state institutions, is to convene regularly to plan the domestic implementation of international human rights conventions ratified by the DPRK. Its activities include the dissemination of these conventions, preparation of treaty specific and UPR reports,

and distribution of the concluding observations and recommendations issued by treaty bodies and UPR working groups. Additionally, the Committee assesses the implementation progress of the conventions and related national legislation by involved parties, providing feedback and suggestions to the Presidium of the Supreme People's Assembly, the Cabinet, and other relevant authorities.<sup>52</sup>

38. Allegedly established in November 2016 within the Academy of Social Sciences, the Institute of Human Rights is said to be dedicated to researching human rights protection within the socialist framework. As reported in the DPRK's previous UPR national report, the Institute's mandate includes enhancing human rights awareness through the development of explanatory materials, including pamphlets, books, academic papers, and press articles, that elucidate international human rights treaties and pertinent national laws.<sup>53</sup>
39. The primary entities tasked with executing the Strategy for the protection of persons with disabilities include disability protection committees at central, provincial, city, and county levels, along with the Ministry of Education, Ministry of Public Health, Ministry of Labour, and other relevant committees, ministries, and people's committees at various administrative levels. Consultation and technical assistance are ostensibly provided by the Central Committee of the Korean Federation for the Protection of the Disabled (KFPD) and its affiliated organisations, namely the Korean Association for the Rehabilitation of Persons with Disabilities, Korean Association of Women with Disabilities, Deaf Association of Korea, and Blind Association of Korea.<sup>54</sup>

## Human Rights Situation on the Ground

40. KF's findings reveal that legislative deficiencies and inadequate law enforcement regarding the WPK's responsibilities to counter and prosecute GBV including sexual violence disproportionately affect women and girls.<sup>55</sup> This demographic lacks effective and trustworthy mechanisms for seeking justice, compounded by corruption, and deeply ingrained patriarchal attitudes that further stigmatise victims for the violence endured.

### Sex Education

41. KF's findings highlight a widespread lack of formal sex education covering sexually transmitted diseases,<sup>56</sup> and contraceptives,<sup>57</sup> forcing individuals to seek information from informal sources like family, fellow children, or peers.<sup>58</sup>
42. Recent escapees KF consulted, none of whom had received sexual education in school aside from information concerning menstruation, reported a lack of information on sexual violence prevention and support for victims within the education provided by the Socialist Women's Union. Instances of rape were reportedly only discussed in public lectures by Ministry of Social Security officers in the context of a victim's murder.<sup>59</sup> This absence of comprehensive sex education contributes to victims' inability to recognise their experiences as sexual violence, as noted by one escapee.<sup>60</sup>

### Domestic violence

43. Recent legislative updates fail to criminalise domestic violence, lacking provisions for victim rehabilitation. Although the Family Law allows for divorce, citing domestic violence as grounds for separation proves challenging in practice. KF's consultations with North Korean escapees who fled the DPRK post-2019, indicate that domestic violence remains pervasive and is dismissed as a private matter due to cultural attitudes and legal inadequacies. One escapee stated that the perception towards domestic violence is commonly "the wife must have been beaten because she did something wrong" and that "women never beat the men," suggesting that women are the primary victims.<sup>61</sup>

### Sexual violence

44. Sexual violence is widespread. North Korean escapees who fled the DPRK post-2019 revealed that all consider women as the primary victims of sexual violence.<sup>62</sup>
45. The DPRK's legislation, by defining rape narrowly in terms of sexual intercourse accompanied by physical force, reflects a limited understanding of sexual violence. A participant in KF's consultations equated rape solely with assault by a stranger.<sup>63</sup>
46. The recent escapees consulted, identified specific groups as particularly susceptible to sexual violence, including women and girls in the military, the workplace (including *jangmadang* or private markets), construction youth brigades, women with disabilities, and those in detention. The 2022 North Korean Human Rights Report by KINU highlighted that sexual assault against female soldiers by their peers or superiors is reportedly widespread, often used as a means of coercion for social advancement.
47. Women are vulnerable to sexual violence by male public officials and cadres, particularly in black markets and state-assigned workplaces. Despite legislation recognising women's rights in the workplace, specific protections against sexual violence remain inadequately defined. One recent escapee highlighted the predicament women and girls face, noting the necessity to acquiesce to superiors' advances, especially for younger women perceived to be attractive, describing it as a societal norm for women's employment. This respondent personally advised against allowing wives to work to protect them from workplace sexual violence.<sup>64</sup> Another noted that despite the dismissal of perpetrators like cadres, party secretaries, and supervisors, sexual violence persists due to the disadvantages reporting poses to the victims, indicating a systemic issue with addressing and preventing sexual violence in the workplace.<sup>65</sup>
48. Women in construction youth brigades, engaged in major national projects, are often subjected to sexual violence. The Daily NK reports that the challenging, inadequately equipped, and secluded conditions of these brigades exacerbate the risk, with women coerced into sexual acts for purported advantages, including safer and more feasible working conditions.<sup>66</sup> KF obtained corroborative testimony from a North Korean escapee, indicating that the communal living arrangements of construction youth brigades heighten women and girls' susceptibility to sexual violence.<sup>67</sup>

49. Individuals with disabilities are especially prone to sexual violence, facing significant vulnerabilities due to a lack of social protections. A recent escapee emphasised the compounded difficulties experienced by this group, noting, “Even people without disabilities find it difficult to live in the DPRK. How much harder must it be for those who are vulnerable? There are no social protections for people with disabilities.”<sup>68</sup>
50. Reports from civil society,<sup>69</sup> the UN OHCHR,<sup>70</sup> and Elizabeth Salmón, the Special Rapporteur on the situation of human rights in the Democratic People’s Republic of Korea<sup>71</sup> indicate that women in detention facilities are subjected to human rights violations, including forced nudity, sexual harassment, and rape by male officers and guards.
51. Women and girls refouled from the People's Republic of China (PRC) are disproportionately subjected to sexual violence, including strip searches, invasive body searches, and other degrading acts within DPRK penal facilities. These practices may entail compulsory undressing, genital, anus, breast, or hymen inspections without medical justification, and forced penetration with body parts or objects. A detainee from Hyesan City Labour Training Centre recounted routine body searches conducted without legal protocol, often by untrained female detainees summoned to inspect new arrivals.<sup>72</sup> Current data does not indicate any improvement in the patterns of sexual violence in detention nor any proactive measures by the DPRK to address sexual violence since the previous review period.
52. Recent accounts from women escapees suggest an escalation in the intensity of punitive measures for women repatriated forcibly since Kim Jong Un’s ascension.<sup>73</sup> In October 2023, UN experts raised alarms regarding the safety of over 600 repatriated North Koreans, predominantly women, highlighting severe human rights violations including torture, cruel, inhuman, or degrading treatment and punishment likely faced by those refouled to the DPRK.<sup>74</sup>
53. Civil society reports,<sup>75</sup> news articles,<sup>76</sup> and research<sup>77</sup> corroborate KF’s findings that public authorities neither prevent nor prosecute sexual violence effectively, and measures designed to protect and prevent harm to victims are not functioning as required, resulting in underreporting by victims. Furthermore, consulted North Korean escapees stated that reporting sexual violence often exacerbates the victim’s stigmatisation and leads to further ostracisation from the community.<sup>78</sup>

### **Human trafficking**

54. As a party to the UN Convention against Transnational Organized Crime, the DPRK is obligated to combat and criminalise human trafficking. Despite accepting UPR review recommendations to formulate policies against human trafficking, particularly of women and children, the DPRK equates trafficking with acts of treason and illegal border crossing into the ROK<sup>79</sup> denying the existence of trafficking within its borders.<sup>80</sup> The United States 2023 Trafficking in Persons Report highlights the DPRK’s lack of reported law enforcement actions against trafficking, noting an absence of investigations, prosecutions, or convictions of traffickers, including government officials implicated in forced labour or trafficking-related offences.<sup>81</sup>

55. Brokers facilitate networks that coerce women and girls from the DPRK into the PRC, subjecting them to forced prostitution, marriage, labour, and enduring physical and sexual violence from traffickers. Deceived by fraudulent job offers or seeking escape from dire conditions in the DPRK, these women willingly enter trafficking channels. Their lack of official identification documents increases their risk of forced repatriation to the DPRK.<sup>82</sup>
56. Women and girls repatriated to the DPRK after being trafficked into PRC are not shielded from penal consequences.<sup>83</sup> Testimonies indicate that these individuals face punishment for treason, with pregnant women being particularly at risk of coerced abortions to eliminate pregnancies resulting from Chinese paternity.<sup>84</sup>

### **Reproductive Rights**

57. Due to the lack of sex education, there is a significant lack of basic understanding regarding sexual intercourse, menstruation, pregnancy, and contraception in the DPRK.
58. KF's consultations with North Korean escapees indicate restricted contraceptive options within the DPRK, with respondents only recognising the intrauterine device (IUD) as a known method of contraception. 3 recent escapees stated that IUDs are acquired through unofficial means.<sup>85</sup> However, there are prevalent misconceptions linking IUD usage to promiscuity among women, underscoring the urgent need for comprehensive sexual health education and accessible contraceptive options.<sup>86</sup>
59. Unsafe abortions are prevalent in the DPRK, with minimal access to sexual and reproductive health services for women. The former UN Special Rapporteur on DPRK human rights highlighted an increase in black-market abortions in a 2021 report.<sup>87</sup> KF's consultations reveal that abortions are covertly performed with costs ranging from 50 to 100 Yuan.<sup>88</sup> KINU findings suggest retired or private doctors typically execute these procedures in non-hospital settings. There are instances of fatalities during such abortions, compounded by a general lack of awareness about the potential medical complications arising from inadequate facilities or the inherent risks of abortion procedures.<sup>89</sup>
60. Pregnant women are susceptible to reproductive violence in detention. Despite some facilities adopting measures to avoid detaining pregnant women,<sup>90</sup> scholarly articles and KF's findings document witnessed accounts of pregnant detainees who are compelled to undergo abortions post-2019.<sup>91</sup> These coerced terminations are reportedly induced through methods including injections, malnutrition, or physical violence.<sup>92</sup>

### **Discrimination and violence against people of diverse SOGIESC**

61. There is an absence of legal frameworks explicitly prohibiting discrimination based on SOGIESC by state or non-state actors.<sup>93</sup> The DPRK's stance on SOGIESC issues has been largely unaddressed, except for a 2014 instance when the Korean Central News Agency (KCNA) criticised the UN Commission of Inquiry (COI) disparagingly referencing Michael Kirby's sexual orientation.<sup>94</sup> However, reports from South Korean media, citing internal sources, highlight the DPRK's punitive response towards individuals with diverse SOGIESC. For instance, in 2011,

Free North Korea Radio reported the execution of two women from Chongjin, North Hamgyong province, for supposedly engaging in capitalist culture and disorderly conduct attributed to their sexual orientation.<sup>95</sup> Additionally, a 2016 report referenced a 2012 military document expressing concerns over homosexuality, with a statement from Kim Jong Un characterising hand holding among women as indicative of homosexual relations, suggesting it would be negatively perceived by individuals from other countries.<sup>96</sup>

62. Consultations conducted by KF with recent escapees indicate that the DPRK persistently denies the presence of diverse SOGIESC. Escapees report that both individuals within the DPRK and many North Korean escapees in the ROK believe homosexuality is non-existent in the DPRK, attributed to the lack of discourse on SOGIESC.<sup>97</sup> Two escapees specifically noted that homosexuality is criminalised, framing it as an influence of capitalist culture.<sup>98</sup>
63. Post-2019, there is no explicit documentation of arbitrary detention due to discrimination against people with diverse SOGIESC; however, testimonies from recent escapees regarding attitudes towards homosexuality and gender nonconformity underscore prevalent discrimination against individuals with diverse SOGIESC in the DPRK.<sup>99</sup>

## Recommendations

### *Criminalisation and Prosecution*

64. **Legislative Reforms to Criminalise GBV Against Women and Girls:** Amend the Criminal Code to explicitly outlaw all forms of violence against women and girls according to international standards: (1) sexual violence including rape and sexual harassment; (2) domestic violence including physical harms such as marital rape and psychological harms; (3) reproductive rights violations such as forced abortions, criminalising abortions (Article 28 of the Medical Law which restricts abortions), and forced sterilisations; (4) human trafficking including domestic and transnational sex trafficking; and (5) discrimination and violence based on sexual orientation and gender identity.
65. **Prosecute GBV Against Women and Girls:** Actively arrest and prosecute perpetrators who commit the various forms of GBV listed above and include statistics of those efforts by province in the next Voluntary National Report and CEDAW report.
66. **Transparency in Trafficking Prosecutions:** Report on and publicise efforts to investigate, prosecute, and convict traffickers, including government officials complicit in trafficking operations, to demonstrate compliance with anti-trafficking obligations.
67. **Accountability for Public Officials:** Discipline or prosecute officials found engaging in discriminatory practices or committing GBV including sexual and reproductive violence against women and girls.

### *Education*

68. **Integrate annual GBV prevention training for state organisations:** Integrate GBV prevention education into the regular activities of the Women's Union, the General Federation of Trade Unions, the Union of Agricultural Workers, the Youth League, and all other state organisations including law enforcement organisations.
69. **Comprehensive Sexual Education Legislation:** Update the Education Law, People's Public Health Law, Childcare and Education Law, and the Women's Rights Law to mandate comprehensive sexual education, addressing prevention of GBV including domestic violence, sexual violence and discrimination based on SOGIESC by the next UPR cycle.
70. **Accessibility of Contraceptive Options:** Expand contraceptive options beyond the IUD, ensuring legal access and comprehensive education on various contraceptive methods to promote informed reproductive choices.

### *Victim support*

71. **Legislative Reforms to Ensure Rehabilitation for Victims of GBV:** Amend national laws to guarantee physical, psychological, and socio-economic rehabilitation for victims of GBV,

including reproductive, domestic, and sexual violence; and discrimination based on SOGIESC, within two years.

72. **Implementation of a Confidential, Holistic, and Effective Reporting and Referral Mechanism for Victims of GBV:** Ensure that victims of GBV can report to the Women's Union as the first point of support as stated by the DPRK, and ensure that the Women's Union, the People's Committee, the hospitals and law enforcement provide confidential support in the form of shelter, medical service, counselling, and legal support to the victims.

*International Law Standards*

73. **Ratify the Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children, supplementing the United Nations Convention against Transnational Organized Crime:** Update legislation on human trafficking to align with international standards, ensuring protection and decriminalisation of trafficking victims, and ending sexual, reproductive, and other GBV on refoiled women.
74. **Meaningfully Collaborate with UN Human Rights Treaty Bodies:** Strengthen engagement with UN human rights treaty bodies, notably CEDAW, CRC, and CRPD, and improve national coordination for the effective implementation of treaty obligations.



## Endnotes

- <sup>1</sup> Recommendations 126.181, 126.176, 126.175, 126.174, 126.173, 126.172, 126.155, 126.134, 126.46, 126.34, 126.85, 126.77, 126.72 from the 3rd UPR cycle
- <sup>2</sup> Recommendations 127.52, 126.186, 126.185, 126.184, 126.183, 126.182, 126.133, 126.129 from the 3rd UPR cycle
- <sup>3</sup> Recommendations 126.180, 126.179, 126.178, 126.177, 126.176, 126.175, 126.174, 126.173, 126.172, 126.155, 126.107, 126.106, 126.102, 126.46, 126.34 from the 3rd UPR cycle
- <sup>4</sup> “Voluntary National Review 2021, Democratic People’s Republic of Korea | High-Level Political Forum,” [hlpf.un.org](http://hlpf.un.org), accessed April 1, 2024, <https://hlpf.un.org/countries/democratic-peoples-republic-of-korea/voluntary-national-review-2021>.
- <sup>5</sup> Anthony Ruggiero, “Kim Yo Jong Is the World’s Most Dangerous Woman,” *Foreign Policy*, October 7, 2023, <https://foreignpolicy.com/2023/10/07/kim-yo-jong-north-korea-sister-book-review-sung-yoon-lee/>.
- <sup>6</sup> Yoonjung Seo, Jake Kwon, Kathleen Magramo, “North Korea Appoints Nuclear Negotiator as First Woman Foreign Minister,” *CNN*, June 11, 2022, <https://edition.cnn.com/2022/06/11/asia/north-korea-choe-son-hui-intl-hnk/index.html>.
- <sup>7</sup> “Voluntary National Review 2021, Democratic People’s Republic of Korea | High-Level Political Forum,” [hlpf.un.org](http://hlpf.un.org), accessed April 1, 2024. <https://hlpf.un.org/countries/democratic-peoples-republic-of-korea/voluntary-national-review-2021>.
- <sup>8</sup> *Ibid.*
- <sup>9</sup> *Ibid.*
- <sup>10</sup> *CRPD/C/KEN/RQ/1 Replies to the List of issues forwarded by the Committee on the Rights of Persons with Disabilities in relation to the initial report of Democratic People's Republic of Korea*, 2022.
- <sup>11</sup> *Third Time’s a Charm? North Korea’s Implementations of Its Recommendations during Its Third Universal Periodic Review*, 72–73. Database Center for North Korean Human Rights, 2024.
- <sup>12</sup> *Ibid.*
- <sup>13</sup> *CRPD/C/KEN/RQ/1 Replies to the List of issues forwarded by the Committee on the Rights of Persons with Disabilities in relation to the initial report of Democratic People's Republic of Korea*, 2022.
- <sup>14</sup> Recommendation 126.183 from the 3rd UPR cycle
- <sup>15</sup> Recommendation 126.185 from the 3rd UPR cycle
- <sup>16</sup> *Third Time’s a Charm? North Korea’s Implementations of Its Recommendations during Its Third Universal Periodic Review*, 68. Database Center for North Korean Human Rights, 2024.
- <sup>17</sup> Recommendations 132.59, 132.58 from the 3rd UPR cycle
- <sup>18</sup> Park Young Ja. *The formation and refraction on a policy of the sexes' equality in North Korea (1945~70): Focusing on the changing process of woman's political social status*. Asia Women Research, 2004.
- <sup>19</sup> Lee Cheol Su. Exploratory Analysis of the ‘Law on the Protection and Promotion of the Rights of Women’. *Journal of Peace and Unification Studies*, 11(1), 227- 259, 2019.
- <sup>20</sup> The Socialist Constitution, amended in 2019, guarantees women’s equal rights to political and social participation and in family life. Article 62 which argues for “releasing women from the burden of domestic labour” was deleted. In the amended version, Article 77 states that “women are accorded equal social status and rights with men. The State shall afford special protection to mothers and children by providing maternity leave, reduced working hours for mothers with several children, a wide network of maternity hospitals, creches and kindergartens, and other measures. The State shall provide all conditions for women to play their full roles in society.”
- <sup>21</sup> The Socialist Labour Law (2015) states in Article 31 that “The State shall guarantee every condition so that female workers can actively participate in societal labour. Local political institutions and relevant State organs, enterprises, and social, cooperative organizations must manage creches, kindergartens, paediatric wards and amenities so that women can work conveniently, and must organize things such as domestic labour units and domestic cooperatives so that women who cannot go out to the workplace can work according to their wishes.”

Article 59 stipulates that “The State shall pay special attention to labour protection work for female workers. State organs, enterprises, and social, cooperative organizations must hold sufficient labour protection and hygiene facilities for female workers. Women must not be given work that is strenuous and harmful to their health, and female workers who have breastfeeding children or are pregnant may not be ordered to do night labour.”

<sup>22</sup> Article 20 of the Women’s Rights Law (2015): Education institutions shall give education that fits the physical nature of female students, and shall smoothly have relevant facilities for women to protect and promote the health of female students.

<sup>23</sup> Article 46 of the Women’s Rights Law (2015): Every form of assault may not be committed against a woman in the family. Regional People’s Committees and institutions, enterprises and organizations shall normally do resident and employee education work to prevent domestic assault shall ensure that no domestic assault appears in their jurisdictional area or in the families of citizens affiliated to them.

<sup>24</sup> Article 319 of Criminal Code (2022): A person who rapes a woman using assault, threats or helpless status shall be sentenced to a term of reform through labour of less than 4 years. In cases where a woman was raped multiple times or by several people, he or she shall be sentenced to a term of reform through labour of more than 4 years to less than 10 years. If the victim has incurred serious injury or died due to the acts in the foregoing paragraph, he or she shall be sentenced to a term of reform through labour of more than 9 years.

<sup>25</sup> Article 320 of Criminal Code (2022): A person who coerces a woman in a subordinate relationship to have sexual intercourse shall be sentenced to a term of short-term labour. A person who does the act in the foregoing paragraph to several women or causes a woman to become depraved or commit suicide shall be sentenced to a term of reform through labour of less than 3 years.

<sup>26</sup> Article 321 of Criminal Code (2022): A person who has sexual intercourse with a minor who has not reached the age of 15 years old shall be sentenced to a term of short-term labour. In cases where a person has had sexual intercourse multiple times, he or she shall be sentenced to a term of reform through labour of less than 5 years.

<sup>27</sup> Article 279 of Criminal Code (2015): A person who rapes a woman using assault, threats or helpless status shall be sentenced to a term of reform through labour of less than 5 years. In grave cases, he or she shall be sentenced to a term of reform through labour of more than 5 years and less than 10 years. In cases where several people have raped a woman in turn or the victim has incurred serious injury or died due to the acts in the foregoing paragraph, he or she shall be sentenced to a term of reform through labour of more than 10 years.

<sup>28</sup> Article 281 states that “A person who has sexual intercourse with a minor who has not reached the age of 15 years old shall be sentenced to a term of short-term labour of less than 1 year. In cases where a person has had sexual intercourse multiple times, he or she shall be sentenced to a term of reform through labour of less than 5 years.”

<sup>29</sup> Article 39 of the Women’s Rights Law (2015): No one may do acts of kidnapping, buying and selling, raping, or gang raping women. The relevant authorities shall thoroughly adopt measures to prevent acts of kidnapping, buying and selling, raping, or gang raping women, and must strictly punish people who have done such acts according to the law.

<sup>30</sup> Article 55 of the Women’s Rights Law (2015): Responsible workers for institutions, enterprises and organizations and individual citizens who have caused interference to women’s rights protection work by violating this law may have administrative or criminal responsibility imposed depending on the gravity.

<sup>31</sup> *CEDAW/C/PRK/2-4 Consideration of reports submitted by States parties under article 18 of the Convention Second, third and fourth periodic reports of States parties due in 2014 Democratic People’s Republic of Korea.* paras. 66-70. 2016.

<sup>32</sup> Article 43 of the Law on Complaints and Petitions (2010): Responsible workers of institutions, enterprises and organizations or individual citizens who have violated this law and the rights and interests of citizens, or have caused interference to the State’s administration work, may have administrative or criminal responsibility depending on the gravity.

<sup>33</sup> *CEDAW/C/PRK/Q/2-4/Add.1 List of issues and questions in relation to the combined second to fourth periodic reports of the Democratic People’s Republic of Korea.* para.76. 2017.

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<sup>34</sup> Article 34 of the Criminal Procedure Law (2012): Evidence discovered shall be secured by means of making an

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affidavit or report. It may be secured by means of taking a photo, drawing a rough map or by audio or visual recording as necessary. In this case, it shall be stated in the affidavit or report concerned.

<sup>35</sup> Article 171 of the Criminal Procedure Law (2012): A scribe shall participate in the interrogation of the defendant. An investigator may assign 2 observers to the interrogation of the defendant as necessary.

<sup>36</sup> *CEDAW/C/PRK/Q/2-4/Add.1 List of issues and questions in relation to the combined second to fourth periodic reports of the Democratic People's Republic of Korea.* para.76. 2017.

<sup>37</sup> Article 220 of the Criminal Procedure Law (2012): In cases where search and seizure are conducted, 2 observers shall be assigned. In cases where goods or documents of an institution, enterprise or organization are searched and seized, a representative of the institution, enterprise or organization concerned, and in the case of search of the body of a woman, a woman shall be in attendance.

<sup>38</sup> Article 167 of the Criminal Procedure Law (2012): In cases where there are several defendants, an investigator shall ensure they cannot link with each other and shall interrogate a defendant in a location where the other defendants are not.

<sup>39</sup> Article 242 of the Criminal Procedure Law (2012): In cases where an identification interrogation has been done, a report shall be drafted. In the report shall be truthfully stated standard language that criminal liability shall be imposed if a false statement is made in cases where the identifier is a witness, standard language about having asked about the characteristics known to the identifier before showing the target of the identification, and the response to that standard language, and the process and results of the identification. The identifier may directly write what was identified into the report as necessary.

<sup>40</sup> Article 317 of the Criminal Code (2022): A person who steals or hides a child for selfish purposes or motives of revenge shall be sentenced to a term of short-term labour. In cases where a person has stolen or hidden a child several times or by colluding with others, he or she shall be sentenced to a term of reform through labour of less than 5 years; and Article 318 of the Criminal Code (2022): A person who kidnaps a person for selfish purposes shall be sentenced to a term of reform through labour of less than 5 years. In grave cases, he or she shall be sentenced to a term of reform through labour of more than 5 years and less than 10 years. In cases where a person has kidnapped several people, he or she shall be sentenced to a term of reform through labour of more than 10 years.

<sup>41</sup> Article 39 of the Women's Rights Law (2015) states "No one may do acts of kidnapping, buying and selling, raping, or gang raping women. The relevant authorities shall thoroughly adopt measures to prevent acts of kidnapping, buying and selling, raping, or gang raping women, and must strictly punish people who have done such acts according to the law."

<sup>42</sup> Article 18 of the Children's Rights Protection Law (2014) states that "acts of kidnapping or buying and selling children shall not be done. Institutions, enterprises, organizations and citizens must strictly prevent acts of kidnapping or building and selling children."

<sup>43</sup> Article 40 of the Women's Rights Law (2015): People who have done acts of prostitution shall be punished according to law. A person who organized, encouraged, or coerced an act of prostitution shall also receive punishment according to law.

<sup>44</sup> Article 50 of the Women's Rights Law (2015): Women have the right to give birth or not give birth to children. The State shall encourage women to give birth to many children and grow them. A woman who gives birth to and grows triplets and other children of multiple births, and their children, shall have an attending physician and must give special benefits to supply things like excellent homes, medication, food, and household goods without cost.

<sup>45</sup> Please refer to the aforementioned Article 50 of the Women's Rights Law (2015) for further details.

<sup>46</sup> Article 11 of the People's Public Health Law (2012): The State shall pay deep attention to the health protection of women and children. The State shall encourage women to give birth to and raise many children, and shall give special benefits to women who give birth to, and raise, several children at once, and their children.

<sup>47</sup> Article 21 of the Children's Rights Protection Law (2014): The Democratic People's Republic of Korea shall protect by law the rights of children who have been exiled to the Republic with their parents or guardians, or

children who have individually entered the territory of the Republic.

<sup>48</sup> Article 178 of the Criminal Procedures Law (2012): Arrest and detention in custody may only be applied in cases where it is recognised that a defendant liable to limited term of reform through labour, life-time term of reform through labour, or the death penalty may evade the preliminaries or the trial, or may interfere with the investigation of a criminal case. For defendants to whom short-term labour may be imposed, arrest and detention in custody may only be applied in especially necessary cases. For pregnant defendants, detention in custody may not be applied in the period from 3 months before childbirth and 7 months after childbirth.

<sup>49</sup> Article 7 of the Women's Rights Law (2015) stipulates that "The Women's Union is the organization of women for protecting women's rights. The Central Committee of the Korean Democratic Women's Union and Women's Union organizations at each level must responsibly do the work of assuring the rights of women according to this law and the Women's Union bylaws. Work organizations, including the General Federation of Trade Unions, the Union of Agricultural Workers, and the Youth League, must adopt measures to adopt the rights of women affiliated with their organizations according to this law."

<sup>50</sup> Article 4 of the Women's Rights Law (2015): Assuring women's rights is compulsory to institutions, enterprises and organizations. Institutions, enterprises and organizations shall thoroughly assure women's rights according to this law.

<sup>51</sup> Article 5 of the Law on Complaints and Procedures (2010): Complaints and petitions sector workers are the direct entities in charge of complaints and petitions work. The State shall strongly manage worker lineup in the complaints and petitions sector and must raise their responsibilities and role.

<sup>52</sup> National Report by the DPRK for the 3rd UPR Cycle on 9 May 2019

<sup>53</sup> Ibid.

<sup>54</sup> *CRPD/C/KEN/RQ/1 Replies to the List of issues forwarded by the Committee on the Rights of Persons with Disabilities in relation to the initial report of Democratic People's Republic of Korea*, 2022.

<sup>55</sup> *Preliminary Findings of the North Korean Exiled Community's Perceptions of Sexual and Gender-Based Violence and Understandings of Relevant Accountability*. Korea Future, 2023.

<sup>56</sup> A-9's testimony from *Preliminary Findings of the North Korean Exiled Community's Perceptions of Sexual and Gender-Based Violence and Understandings of Relevant Accountability*. Korea Future, 2023.

<sup>57</sup> IM01's testimony from *Documenting Sexual and Gender-based Violence in the Democratic People's Republic of Korea: Reflections on Survivor-centred Documentation Best Practices*. Korea Future, 2023; A-10, A-5's testimonies from *Preliminary Findings of the North Korean Exiled Community's Perceptions of Sexual and Gender-Based Violence and Understandings of Relevant Accountability*. Korea Future, 2023.

<sup>58</sup> IM02's testimony from *Documenting Sexual and Gender-based Violence in the Democratic People's Republic of Korea: Reflections on Survivor-centred Documentation Best Practices*. Korea Future, 2023.; A-7's testimony from *Preliminary Findings of the North Korean Exiled Community's Perceptions of Sexual and Gender-Based Violence and Understandings of Relevant Accountability*. Korea Future, 2023.

<sup>59</sup> A-5's testimony from *Preliminary Findings of the North Korean Exiled Community's Perceptions of Sexual and Gender-Based Violence and Understandings of Relevant Accountability*. Korea Future, 2023.

<sup>60</sup> A-7's testimony from *Preliminary Findings of the North Korean Exiled Community's Perceptions of Sexual and Gender-Based Violence and Understandings of Relevant Accountability*. Korea Future, 2023.

<sup>61</sup> A-5's testimony from *Preliminary Findings of the North Korean Exiled Community's Perceptions of Sexual and Gender-Based Violence and Understandings of Relevant Accountability*. Korea Future, 2023.

<sup>62</sup> From KF's in-depth Consultations with 8 North Korean escapees who fled the DPRK post-2019, out of 15 escapees who fled post-2015; See *Preliminary Findings of the North Korean Exiled Community's Perceptions of Sexual and Gender-Based Violence and Understandings of Relevant Accountability*. Korea Future, 2023 for more information.

<sup>63</sup> IM01's testimony from *Documenting Sexual and Gender-based Violence in the Democratic People's Republic of Korea: Reflections on Survivor-centred Documentation Best Practices*. Korea Future, 2023.

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<sup>64</sup> A-7's testimony from *Preliminary Findings of the North Korean Exiled Community's Perceptions of Sexual and*

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*Gender-Based Violence and Understandings of Relevant Accountability*. Korea Future, 2023.

<sup>65</sup> A-6's testimony from *Preliminary Findings of the North Korean Exiled Community's Perceptions of Sexual and Gender-Based Violence and Understandings of Relevant Accountability*. Korea Future, 2023.

<sup>66</sup> Mun, Dong Hui. "Female Brigades in the Samjiyeon Are Exposed to Sexual Violence...Their Situation Is Deplorable." *Daily NK*, December 4, 2019. <https://www.dailynk.com/%EC%82%BC%EC%A7%80%EC%97%B0-%EB%8F%99%EC%9B%90%EB%90%9C-%EC%97%AC%EC%84%B1-%EB%8F%8C%EA%B2%A9%EB%8C%80%EC%9B%90%EB%93%A4-%EC%84%B1%ED%8F%AD%EB%A0%A5-%EB%85%B8%EC%B6%9C%EC%B2%98%EC%A7%80/>.

<sup>67</sup> A-10's testimony from *Preliminary Findings of the North Korean Exiled Community's Perceptions of Sexual and Gender-Based Violence and Understandings of Relevant Accountability*. Korea Future, 2023.

<sup>68</sup> A-7's testimony from *Preliminary Findings of the North Korean Exiled Community's Perceptions of Sexual and Gender-Based Violence and Understandings of Relevant Accountability*. Korea Future, 2023.

<sup>69</sup> See *The Accountability Imperative: Torture & Ill-Treatment in the DPRK Penal System*. Korea Future, 2023; *Preliminary Findings of the North Korean Exiled Community's Perceptions of Sexual and Gender-based Violence and Understandings of Relevant Accountability*. Korea Future, 2023; *Documenting Sexual and Gender-based Violence in the Democratic People's Republic of Korea: Reflections on Survivor-centred Documentation Best Practices*. Korea Future, 2023; "Worth less than an animal": *Abuses and due process violations in pretrial detention in North Korea*. New York, NY: Human Rights Watch, 2020; *Report: Inquiry on Crimes Against Humanity in North Korean Detention Centers*. War Crimes Committee of the International Bar Association and The Committee for Human Rights in North Korea, 2022.

<sup>70</sup> "I still feel the pain...": *Human rights violations against women detained in the Democratic People's Republic of Korea*. Geneva, Switzerland: United Nations Human Rights, 12-14, Office of the High Commissioner, 2020.

<sup>71</sup> A/HRC/52/65 *Situation of human rights in the Democratic People's Republic of Korea Report of the Special Rapporteur on the situation of human rights in the Democratic People's Republic of Korea*, Elizabeth Salmón. Para 25. 2023.

<sup>72</sup> A0008's testimony from North Korean Prison Database

<sup>73</sup> *White Paper on Human Rights in North Korea 2022*. Seoul: Korea Institute for National Unification, 2023.

<sup>74</sup> Office of the United Nations High Commissioner for Human Rights. China must not forcibly repatriate North Korean escapees: UN experts, 2023. <https://www.ohchr.org/en/press-releases/2023/10/china-must-not-forcibly-repatriate-north-korean-escapees-un-experts>.

<sup>75</sup> "Worth less than an animal": *Abuses and due process violations in pretrial detention in North Korea*. New York, NY: Human Rights Watch, 2020; *Report: Inquiry on Crimes Against Humanity in North Korean Detention Centers*. War Crimes Committee of the International Bar Association and The Committee for Human Rights in North Korea, 2022.

<sup>76</sup> Suyoung Ha, "North Korean female defector says she was raped at age 23...forced to have an abortion without anaesthetic," Joongang Ilbo, December 7, 2021, <https://www.joongang.co.kr/article/25030189#home>.

<sup>77</sup> *White Paper on Human Rights in North Korea 2022*. Seoul: Korea Institute for National Unification, 2023.

<sup>78</sup> IM02's testimony from *Documenting Sexual and Gender-based Violence in the Democratic People's Republic of Korea: Reflections on Survivor-centred Documentation Best Practices*. Korea Future, 2023; A-8, A-10, A-5's testimonies from *Preliminary Findings of the North Korean Exiled Community's Perceptions of Sexual and Gender-Based Violence and Understandings of Relevant Accountability*. Korea Future, 2023.

<sup>79</sup> *Third Time's a Charm? North Korea's Implementations of Its Recommendations during Its Third Universal Periodic Review*, 72–73. Database Center for North Korean Human Rights, 2024.

<sup>80</sup> *White Paper on Human Rights in North Korea 2022*. Seoul: Korea Institute for National Unification, 377. 2023.

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<sup>81</sup> 2023 *Trafficking in Persons Report: North Korea: DPRK*. United States Department of State Office to Monitor

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and Combat Trafficking in Person, 2023. <https://www.state.gov/reports/2023-trafficking-in-persons-report/north-korea/>.

<sup>82</sup> Ibid.

<sup>83</sup> *White Paper on Human Rights in North Korea 2022*. Seoul: Korea Institute for National Unification, 377. 2023.

<sup>84</sup> Kang, Minju. *Legal Gaps and Challenges in Transnational Human Trafficking of North Korean Refugee Women* (2020). Ewha Journal of Gender and Law. pp 87.

<sup>85</sup> IM01's testimony from Korea Future's consultations with North Korean exiles; A-5 and A-7's testimonies from *Preliminary Findings of the North Korean Exiled Community's Perceptions of Sexual and Gender-Based Violence and Understandings of Relevant Accountability*. Korea Future, 2023.

<sup>86</sup> IM01's testimony from Korea Future's consultations with North Korean exiles; A-7, A-8, A-9, A-5's testimonies from *Preliminary Findings of the North Korean Exiled Community's Perceptions of Sexual and Gender-Based Violence and Understandings of Relevant Accountability*. Korea Future, 2023; Also see Young Ja, Park. "Sexual and Reproductive Rights in the DPRK: Women and Sexuality." *Korea Institute for National Unification* 21, no. 19 (2021) for more information.

<sup>87</sup> *A/HRC/46/5 Situation of human rights in the Democratic People's Republic of Korea Report of the Special Rapporteur on the situation of human rights in the Democratic People's Republic of Korea*, Tomás Ojea Quintana. Para.30, 2021.

<sup>88</sup> IM01's testimony from *Documenting Sexual and Gender-based Violence in the Democratic People's Republic of Korea: Reflections on Survivor-centred Documentation Best Practices*. Korea Future, 2023.

<sup>89</sup> *White Paper on Human Rights in North Korea 2022*. Korea Institute for National Unification, 2023.

<sup>90</sup> A0148, A0288's testimonies from the North Korean Prison Database

<sup>91</sup> See *The Accountability Imperative: Torture & Ill-Treatment in the DPRK Penal System*. Korea Future, 2023; *Preliminary Findings of the North Korean Exiled Community's Perceptions of Sexual and Gender-based Violence and Understandings of Relevant Accountability*. Korea Future, 2023; *White Paper on Human Rights in North Korea 2022*. Seoul: Korea Institute for National Unification, 377. 2023; For news articles, see "Rights Experts from 17 Countries Demand Release of North Korean Escapees in China." 2023. The Korea Times. September 21, 2023. [https://www.koreatimes.co.kr/www/nation/2024/04/103\\_359770.html](https://www.koreatimes.co.kr/www/nation/2024/04/103_359770.html).

<sup>92</sup> A0082's testimony from North Korean Prison Database; *Report: Inquiry on Crimes Against Humanity in North Korean Detention Centers*. War Crimes Committee of the International Bar Association and The Committee for Human Rights in North Korea, 2022.

<sup>93</sup> 2022 *Country Reports on Human Rights Practices: North Korea*. United States Department of State, 2022. <https://www.state.gov/reports/2022-country-reports-on-human-rights-practices/north-korea/>.

<sup>94</sup> Taylor, Adam. "North Korea Slams U.N. Human Rights Report Because It Was Led by Gay Man." The Washington Post, 2014. <https://www.washingtonpost.com/news/worldviews/wp/2014/04/22/north-korean-state-media-slams-u-n-human-rights-report-because-it-was-led-by-a-gay-man/>.

<sup>95</sup> "Is Homosexuality Prevalent in the North Korean Military?" Monthly Chosun Newsroom, 2018. [https://m.monthly.chosun.com/client/mdaily/daily\\_view.asp?idx=2613&Newsnumb=2018012613](https://m.monthly.chosun.com/client/mdaily/daily_view.asp?idx=2613&Newsnumb=2018012613); "North Korean Lesbian Couple Publicly Executed for 'Sins Steeped in Capitalism.'" Seoul Shinmun, 2011. <https://www.seoul.co.kr/news/society/2011/09/29/20110929500003>.

<sup>96</sup> "Is Homosexuality Prevalent in the North Korean Military?" Monthly Chosun Newsroom, 2018. [https://m.monthly.chosun.com/client/mdaily/daily\\_view.asp?idx=2613&Newsnumb=2018012613](https://m.monthly.chosun.com/client/mdaily/daily_view.asp?idx=2613&Newsnumb=2018012613); "North Korean Lesbian Couple Publicly Executed for 'Sins Steeped in Capitalism.'" Seoul Shinmun, 2011. <https://www.seoul.co.kr/news/society/2011/09/29/20110929500003>.

<sup>97</sup> A-9's testimony from *Preliminary Findings of the North Korean Exiled Community's Perceptions of Sexual and Gender-Based Violence and Understandings of Relevant Accountability*. Korea Future, 2023. According to A-9, "In North Korea, homosexuality does not exist. I only read in a newspaper that homosexuality is associated with

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capitalism, particularly in countries like the US. In North Korea, where access to the outside world is restricted, perhaps as much as 80% of the population may not understand the concept of homosexuality.”

<sup>98</sup> A0850’s testimony from North Korean Prison Database; A-9’s testimony from *Preliminary Findings of the North Korean Exiled Community’s Perceptions of Sexual and Gender-Based Violence and Understandings of Relevant Accountability*. Korea Future, 2023.

<sup>99</sup> A-8, A-9, A-10 from *Preliminary Findings of the North Korean Exiled Community’s Perceptions of Sexual and Gender-Based Violence and Understandings of Relevant Accountability*. Korea Future, 2023.